

BENNETT v. MANNING — MASTER EVIDENCE DISTILL

Comprehensive Documentary Record for Multi-Venue Litigation

Prepared: February 22, 2026 For: Petition for Review (WA Supreme Court), Federal § 1983 Complaint, WSBA Complaint, CR 60(b) Motion

I. CASE OVERVIEW

Parties:

- **Zackariah Jeremiah Bennett** (DOB 01/07/1981) — Father of T.B., pro se
- **Kelly J. Bennett (Jovanovich)** — Mother of T.B.
- **Melvina Catherine Manning (née Roberson)** (DOB 05/13/1959) — Maternal grandmother of T.B.
- **John Arthur Manning** — Manning's husband
- **Timothy E. Bennett II (T.B.)** (DOB 01/11/2007) — Subject child

Active Case Numbers:

- 08-3-03956-4 SEA (King County — Original custody, 2008)
- 13-5-00050-3 (Snohomish County — Relinquishment/Adoption, 2013; adoption cause dismissed 2019)
- 22-2-09380-3 (King County — DVPO, 2022)
- 23-2-11352-7 SEA (King County — Civil complaint, 2023)
- 84450-4-I (Division One — DVPO appeal)
- 84951-4-I (Division One — Indigency appeal, PUBLISHED 4/17/2023)
- 87007-6-I (Division One — Civil appeal, opinion 1/26/2026)
- 102950-1 (WA Supreme Court — pending Petition for Review)

Opposing Counsel:

- **O.W. Hollowell & Associates** (WSBA 9163) — 4471 Tolt Ave, Carnation, WA 98014. Filed original 2008 ex parte order, prepared 2008 Findings
 - **Nancy A. Gass** (WSBA 49685) — Hollowell & Associates. Current counsel for Manning. Prepared 2023 Response, 2024 Summary Judgment order, contradictory filings
 - **Mark M. Demaray, Inc. P.S.** — 145 Third Ave South, Suite 201, Edmonds, WA 98020. Prepared 2013 Communication Agreement and Relinquishment
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II. THE CONSPIRACY — DOCUMENTED IN THEIR OWN WORDS

A. The Origin: MSN Chat Logs (June 2, 2008)

Source: Email from John Manning (adubbsworld@hotmail.com) to Melvina, sent Monday June 02, 2008 at 12:10 PM. Subject: "Zack." Contains chat transcripts between "Magik" (Zack) and "Princess Kelly" (Kelly Bennett).

Context: Zack was on probation in Colorado. Manning had filed the ex parte restraining order on May 28-29, 2008 (three days earlier). Kelly had signed a Joinder in that motion from Manning's home in Carnation. This chat was sent by John Manning to Melvina — documenting that they were monitoring Zack's communications.

Critical Admissions (Zack's words, showing duress and coercion):

- "the court order was bs thing to do. court=jail for me. mom wasn't thinking at all."
- "it has been stated that I committed DV and felony drug use while on probation." (*highlighted — false statement in court record*)
- "that statement CANNOT be made record!!!!!!!!!!!!!!" / "it has to dissappear!!!!!!!!!!!!!!"
- "i am fucked if this goes through. i told mom to drop it and i will sign him over till i get to wa"
- "mom has to realize this is about tim and my life, she can have her way without fucking me over."
- "she just got a son back from prison, she doesn't need to send the other one off."
- "i will sign him over till i move to gma's, but this case MUST get dropped. i will sign first. or i don't get to come home and might go to prison."
- "i won't go to a revoke hearing. I WILL RUN." / "and run armed"
- "i will give her custody till WE move to gma carols"
- "i want my bonnie back"

Critical Admissions (Kelly's words, showing active participation in scheme):

- "now everything we are doing is for our son" / "not against him"
- "you know that we cant take care of our selfs let alone our son right now"
- "this is the only way to make you realize what is going on what WE are doing wrong"
- "we did this to our self we need to clean up our acts"
- "CHILDREN ARE A PRIVILAGE NOT A RIGHT"
- "you know that anything we do did or have done affect that boy" / "and mom has saved him you know that" / "we would have lost him and you should be kissing her feet for keeping him out of the systeem"
- "we had 2-3 months away from him and we fucked it up"
- "i need you to hunny but call me asap to make sure the plan is finalized" (*highlighted — establishes pre-existing plan*)

Zack's description of Manning:

- "i say listen carefully and pay attention. she is devious in her ways."
- "think with your heart, god speaks there. the devil talks to your head."
- "she did worse than carol ever could have with this one."

What this proves:

1. Zack signed documents under duress — facing prison revocation if he fought the custody action
2. Kelly was an active participant in the plan from the beginning ("the plan is finalized")
3. Kelly acknowledged both parents' shortcomings but framed Manning's intervention as "saving" T.B.
4. Manning obtained the ex parte order knowing it would create criminal jeopardy for Zack (probation violation)
5. Manning was monitoring communications between Zack and Kelly through John Manning
6. The "abandonment" narrative was manufactured — Zack wanted his son, was coerced into signing
7. Zack explicitly wanted TEMPORARY custody transfer, not permanent relinquishment

B. The Ex Parte Restraining Order (May 29, 2008)

Source: Motion/Declaration for Ex Parte Restraining Order, Case No. 08-3-03956-4 SEA, filed May 29, 2008. Prepared by O.W. Hollowell (WSBA 9163). Signed by Melvina Roberson (Manning) on May 28, 2008 at Carnation, WA.

Key provisions:

- Restrains Zack from disturbing peace of Manning, approaching home/work/school, coming within 100 feet
- Restrains BOTH Zack and Kelly from removing children from state
- Grants Manning temporary custody of T.B.
- Father's visitation: **"None."**
- Mother's visitation: **"Reasonable unlimited visitation."**
- Orders child support

Declaration alleges:

- "Respondent's history of drug use, criminal activity and domestic violence" (Section 2.2)
- Injury to prevent: "Physical and emotional harm to Petitioner and to the minor child" (Section 2.1)
- Reason for temporary order: "To establish custody of minor child and prevent irreparable harm" (Section 2.5)

Notice section (Section III):

- "Respondent father out of state and has history of violence-no notice given."
- "Respondent mother joins motion."

Kelly's Joinder: "I, Respondent Kelly J. Bennett, join in this motion." Signed at Carnation, Washington on May 28, 2008.

What this proves:

1. Kelly physically at Manning's home in Carnation when this was filed
2. Kelly joined Manning's motion against Zack — co-conspirator from day one
3. Manning got "unlimited visitation" for Kelly while giving Zack "None"
4. No notice to Zack because he was "out of state" (in Colorado, on probation/incarcerated)
5. Hollowell prepared everything — same firm that would later file contradictory findings

C. The 2008 Manning Declaration (November 26, 2008)

Source: Declaration of Melvina Manning, Case No. 08-3-03956-4, prepared by O.W. Hollowell & Associates, signed under penalty of perjury.

Paragraph 4: "Zackariah has not seen his son since March 2008 nor made any attempt to help with Timothy's Support. Starting a couple months ago Zackariah began calling his son on the telephone a couple times per week."

Paragraph 9: "Timothy doesn't talk about his own parents... seems a little uncertain about how they are when they call him on the telephone."

What this proves:

- Manning admits under oath that Bennett was calling T.B. multiple times weekly in Sept/Oct 2008
- Nine days later, court enters findings of "abandonment" — in the same case
- Cannot "abandon" a child while calling them multiple times per week
- RCW 26.27.021(1) requires intent to "forego parental rights" — regular calls prove opposite intent

D. The 2008 Findings of Fact (December 5, 2008)

Source: Findings of Fact and Conclusions of Law, Case No. 08-3-03956-4 SEA, prepared by O.W. Hollowell & Associates, signed by judge December 5, 2008 — same day as Manning Declaration.

THE BINARY IMPOSSIBILITY (same document, same date):

Page	Finding	Implication
3, §2.4	"[X] children have been abandoned "	No intent to exercise parental rights
3, §2.7	"[X] Parent's abandoned child to Petitioner"	No intent to exercise parental rights
4, §2.9	"[X] Willful abandonment ... Father's visitation: None."	No intent to exercise parental rights
5, §2.11	"[X] Both parents threaten to remove child from State of Washington"	Active assertion of parental rights requiring restraining order

A person cannot simultaneously abandon a child AND threaten to remove them. Abandonment means no intent to exercise parental rights. Threatening removal means aggressively exercising parental rights. Both boxes checked. Same document. Same attorney. Same judge.

Additional context: Default judgment entered 8/12/2008 against both parents. Bennett was served 5/30/2008 while incarcerated in Adams County, Colorado. Default entered less than 75 days later. No hearing. No counsel. No ability to respond from jail.

E. The Communication Agreement (2013)

Source: Agreement and Order for Communication and Contact, Superior Court of Washington for Snohomish County, In Re the Adoption of Timothy E. Bennett II (DOB 01/11/2007). Prepared by Law Offices of Mark M. Demaray, Inc. P.S.

Critical provisions:

- Section 1.1: "This agreement regarding communication with or contact between the adopted child, the adoptive parents and the birth parent(s) **is not legally enforceable unless the terms of the agreement are set forth in a written court order signed by a judge.**"
- Section 4.2: "in no event shall the violation of the terms of the agreement constitute a basis for vacating or setting aside the adoption."
- Section 3.2: Each parent whose rights have not been terminated is a party to the agreement
- Section 3.3: Each party has been represented by or had opportunity to consult with a lawyer

Signature page (page 4):

- "DONE IN OPEN COURT this ____ day of ___, 2013" — **DATE LINES APPEAR BLANK**
- "JUDGE/COURT COMMISSIONER" — **SIGNATURE LINE APPEARS UNSIGNED**
- Lines for "Birth Father," "Adoptive Mother," "Adoptive Father" — unsigned on this copy

What this proves:

1. The agreement was designed as a trap — Section 1.1 says it's unenforceable without court order, Section 4.2 says violations can't undo the adoption
2. If the judge never signed, the agreement was never enforceable by its own terms
3. Manning and Demaray knew this when presenting it to Bennett as part of the adoption package
4. Bennett was induced to relinquish based on promises of continued contact that were unenforceable
5. This is textbook fraud in the inducement — inducing reliance on promises the promisor knows cannot be enforced

F. The 2013 Relinquishment Order (March 18, 2013)

Source: Order of Relinquishment, Snohomish County Superior Court, Cause No. 13-5-00050-3. Prepared by Mark M. Demaray.

- Terminates parent-child relationship
- Grants custody to John Arthur Manning and Melvina Catherine Manning
- References "Pre-Post Placement Report" by Joan Ward, MSW, LICSW
- Adoption cause subsequently **dismissed in 2019** for lack of progress — six years, no adoption completed

G. Kelly Jovanovich Facebook Admission (November 25, 2022)

Source: Facebook Messenger screenshots between Jessica Bennett (Zack's wife) and Kelly Jovanovich, November 25, 2022.

Kelly's statements:

- "That's very good of her as **he is never to see Tim**. Yes it was."
- "Tim is the only child in his blood line to not be beaten by his father and because of that **he is never to see him**. I have suffered not seeing him as **Mel and John are keeping Tim from me and I still have rights...**"

Jessica's context: "Nobody but melvina, John, misty and josh has been able to see him now josh can't and being pushed away because he was talking to zack about Tim meeting his brother and sister and melvina found out and put a restraining order on zack with a hand written statement from you?"

What this proves:

1. Kelly confirms "he is never to see Tim" was the arrangement — permanent exclusion
2. Kelly reveals Manning is also excluding HER despite Kelly "still hav[ing] rights"
3. The DVPO was triggered by someone facilitating sibling contact
4. Manning used Kelly's handwritten statement to get the protection order
5. Admissible as co-conspirator statement under FRE 801(d)(2)(E)

H. Manning's 2023 Response — Internal Contradiction

Source: Response to Complaint, Case No. 23-2-11352-7, filed 9/19/2023 by Nancy A. Gass, Hollowell & Associates. Signed under penalty of perjury by Manning.

Page 2, lines 9-10: "Mr. Bennett **never made any attempt** to contact TB from 2008 until June 23, 2019."

Page 6, lines 16-18: "Between 2008 and 2019, Mr. Bennett never reached out to TB to try to build a relationship with him... **one or two letters during the roughly 4 years he was in prison.**"

Same document admits letters while claiming "never made any attempt." These statements are mutually exclusive in a single sworn filing.

What the Response omits:

- 2008: Phone calls Manning admitted in her own declaration
- 2010-2011: Facebook-documented phone call schedules
- June 12, 2011: Video visit at Manning residence (Manning filmed it)
- 2012: In-person visit at Manning residence
- 2012-2015: Read-to-Me-Daddy recordings, Angel Tree gifts (Manning acknowledged receipt)
- 2013: Communication Agreement
- 2015-2018: Ongoing Facebook discussions about T.B.
- 2017: Manning babysat Zack's son A.B. while concealing A.B.'s identity from T.B.

I. Manning's DVPO Declaration (August 1, 2022)

Source: Declaration of Melvina Catherine Manning, Case No. 22-2-09380-3. Signed under penalty of perjury at Carnation, WA on 8/01/2022.

- Manning identifies herself as "Parent of Zackariah Bennett, grandparent of Timothy Bennett"
- Claims T.B. "requested that the initial harassment order be filed on June 21, 2022"
- Describes two incidents: June 23, 2019 and June 1/12, 2022
- Claims T.B. "thought he was a kidnapper" on first visit
- Describes second visit where T.B. "came up to the front door, and politely told him 'I don't want to see you at this time'"
- Claims T.B. had "a panic attack" hours later

J. T.B.'s Declaration (August 1, 2022)

Source: Declaration of Timothy Edward Bennett, Case No. 22-2-09380-3. Signed under penalty of perjury at Carnation, WA on 8/01/2022. T.B. was age 15.

- States "I do not want to see or speak with my father (Zackariah Bennett)"
- Describes June 23, 2019 incident: "I thought he was a kidnapper and I felt threatened"
- Describes June 1/12, 2022 incident: "I came up to the front door, and politely told him 'I don't want to see you at this time.' And he responded by becoming agitated and aggressive, and demanding I meet my siblings."
- "I have felt threatened and I've been paranoid that he may show up again"
- "I stand with my Nana, and I request that a protection order is issued so I feel safe at home and at school."

What this proves in context:

1. T.B. had no independent knowledge of who Bennett was — "thought he was a kidnapper" in 2019
 2. This is the product of 11 years of alienation — T.B. doesn't recognize his own father
 3. T.B.'s declaration closely mirrors Manning's declaration — same language, same framing
 4. T.B. says he "politely told him" he didn't want contact, then Manning/Court claims "harassment"
 5. The DVPO was triggered by Bennett trying to facilitate sibling contact — exactly what Kelly confirmed
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III. DOCUMENTED TIMELINE OF CONTACT (Contradicting "11 Years of Silence")

Date	Event	Source
Mar 2008	T.B. placed with Manning	Court records
May 28, 2008	Manning files ex parte order; Kelly joins from Manning's home	08-3-03956-4
May 30, 2008	Bennett served while incarcerated in Adams County, CO	Court records
June 2, 2008	MSN chat logs show Bennett discussing case with Kelly	John Manning email
Aug 12, 2008	Default judgment against both parents — no hearing, no counsel	08-3-03956-4
Sept-Oct 2008	Bennett calling T.B. "couple times per week"	Manning Declaration ¶4
Nov 26, 2008	Manning admits calls in sworn declaration	Manning Declaration
Dec 5, 2008	Court enters "abandoned" finding despite admitted calls	Findings of Fact
2010-2011	Phone call schedules documented on Facebook	Exhibit A
June 12, 2011	Video visit at Manning residence — Manning films it; T.B. identifies "daddy one" car	Video evidence
2012	In-person visit; discussions of T.B.'s mental health	Exhibit A
2012-2015	Read-to-Me-Daddy recordings, Angel Tree gifts	Exhibit A (Manning acknowledged receipt)
2013	Communication Agreement — Snohomish court found contact "in best interest"	13-5-00050-3
2013	Relinquishment Order signed	13-5-00050-3
2015	Bennett confronts Manning: "fool to sign those papers and believe in the promises"	Facebook messages
2015-2018	Ongoing Facebook discussions about T.B.	Exhibit A
2017	Manning babysits Bennett's son A.B., conceals A.B.'s identity from T.B.	Evidence
2019	Adoption cause dismissed for lack of progress	13-5-00050-3
June 23, 2019	Bennett visits Manning home; T.B. "thought he was kidnapper"	DVPO declarations

June 2022	Bennett visits again; T.B. says "I don't want to see you at this time"	DVPO declarations
Nov 25, 2022	Kelly admits "he is never to see Tim" arrangement	Facebook screenshots
Sept 19, 2023	Manning swears "no attempt to contact" while admitting letters in same filing	Response, 23-2-11352-7

IV. TABLE 1: RESPONDENT'S DOCUMENTED MISCONDUCT

#	Date	Act	Document/Source	Contradicted By
1	5/28/2008	Kelly joins Manning's ex parte motion from Manning's home in Carnation	Ex Parte Motion p.4, 08-3-03956-4	Kelly's 2022 admission that "we had 2-3 months away from him and we fucked it up" — acknowledges joint scheme
2	6/2/2008	John Manning emails chat logs to Melvina; Kelly discusses "the plan"	Email from adubbsworld@hotmail.com	Demonstrates surveillance and coordinated action
3	11/26/2008	Manning swears Bennett calls T.B. "couple times per week"	Manning Declaration ¶4, 08-3-03956-4	Finding of "abandoned" entered 9 days later in same case
4	12/5/2008	Hollowell submits Findings checking BOTH "abandoned" AND "threaten to remove child"	Findings pp.3,5, 08-3-03956-4	These are mutually exclusive — legal impossibility in single document
5	2013	Communication Agreement presented as inducement for relinquishment; agreement says on its face it's unenforceable without court order; judge signature line appears blank	Comm. Agreement, 13-5-00050-3	Section 1.1 of same document; Section 4.2 bars using violations to challenge adoption
6	2013-2019	Adoption never completed; cause dismissed for lack of progress	13-5-00050-3 docket	Courts continue treating relinquishment as valid permanent termination
7	2017	Manning babysits A.B. (Bennett's younger son), conceals A.B.'s identity from T.B.	Evidence	Active alienation — preventing siblings from knowing each other
8	9/19/2023	Manning swears "no attempt to contact" (p.2) while admitting "one or two letters" (p.6) in same filing	Response, 23-2-11352-7	Internal contradiction in single sworn document; omits 2011 visit she filmed
9	9/19/2023	Manning's Response omits 2008 calls, 2011 video visit, 2012 visit, recordings, gifts, Communication Agreement, Facebook correspondence	Response, 23-2-11352-7	All documented in court records and Exhibit A
10	11/25/2022	Kelly admits "he is never to see Tim" arrangement	Facebook screenshots	Contradicts court's "abandonment" narrative —

				exclusion was imposed, not chosen
11	11/25/2022	Kelly reveals Manning "keeping Tim from me and I still have rights"	Facebook screenshots	Manning excluding even cooperating co-conspirator
12	Post-2013	Manning files for child support twice after relinquishment (subsequently reversed)	Court records	Cannot claim parental rights terminated AND collect parental support
13	6/21/2024	Gass tells Supreme Court civil evidence "not relevant" to DVPO	Filing 102950-1	Gass tells Superior Court 7 days later (6/28/2024) that DVPO adjudicated "all" civil issues
14	6/28/2024	Gass argues collateral estoppel based on DVPO	23-2-11352-7	Her own filing 7 days prior said civil evidence irrelevant to DVPO — contradictory positions
15	4/16/2024-ongoing	Manning fails to respond to any discovery requests	Motion to Compel, 5/6/2024, 23-2-11352-7	Summary judgment granted with discovery outstanding; perjured statements never tested

V. TABLE 2: PRIMA FACIE JUDICIAL ERRORS

#	Date	Error	Rule Violated	Document
1	8/12/2008	Default judgment against incarcerated person; no counsel, no hearing; internally contradictory findings	Due Process (5th/14th Amend); CR 55	08-3-03956-4
2	2022	DVPO issued under RCW 7.105 (effective 7/1/2022) for June 2022 conduct	Ex post facto; RCW 26.50 was governing law	22-2-09380-3
3	2022	DVPO issued despite judge finding intent to harass NOT present	RCW 7.105.010 requires intent	VRP 22-2-09380-3
4	4/18/2024	Denied judicial notice of statutory effective dates in DVPO appeal	ER 201(d) — "shall" is mandatory	84450-4-I
5	2024	Denied judicial notice of Gass's contradictory filings	ER 201(d) — mandatory	23-2-11352-7
6	2024	Summary judgment order emailed to bailiff without service on appellant	CR 56; Due Process	23-2-11352-7
7	7/2/2024	Denied Motion to Strike False Statements and Motion for Sanctions — no findings	CR 11; Due Process	23-2-11352-7
8	7/3/2024	Summary judgment granted: (a) while discovery outstanding; (b) one day after denying motion to strike; (c) order drafted by opposing counsel; (d) doesn't address fraud claims	CR 56(f); CR 56(e); Due Process	23-2-11352-7
9	2024-2025	Denied transcript funding, violating published precedent <i>Bennett v. Manning</i> 84951-4-I (4/17/2023)	RAP 15.2(c); Published precedent	87007-6-I
10	12/1/2025	Manning ignores mandatory order to respond; court rules in her favor anyway	CR 8(d) deemed admission	87007-6-I
11	1/26/2026	Opinion finds "no attempt to contact" 2008-2019 despite admitted Exhibit A	Summary judgment standard — view evidence in light most favorable to nonmoving party	87007-6-I
12	2024-2026	Ignored nine judicial notice requests re: court record contradictions	ER 201(d) — "shall" mandatory	87007-6-I
13	2/18/2026	Denied reconsideration without explanation — three factual impossibilities unaddressed	RAP 12.4	87007-6-I

VI. THE PUBLISHED PRECEDENT THEY VIOLATED

Case: *Manning v. Bennett*, No. 84951-4-I (Div. One, April 17, 2023) **Per Curiam** — Judges Dwyer, Coburn, Andrus

Holding: Trial court erred by:

1. Not determining Bennett's indigency or entering findings as required by RAP 15.2(c)
2. Deciding the ultimate issue of entitlement to public expense review — a question RAP 15.2(c) expressly reserves for the Supreme Court

"We reverse and remand to the trial court for further proceedings consistent with this opinion."

Subsequent violation: In 87007-6-I, the same Division One penalized Bennett for not having the transcript that the trial court refused to fund in violation of this very precedent. The Court of Appeals issued binding instructions, the trial court ignored them, and the Court of Appeals then held the consequences against Bennett.

VII. THE SUMMARY JUDGMENT ORDER (July 3, 2024)

Source: Order Granting Defendant's Motion for Summary Judgment, Case No. 23-2-11352-7, Judge Jaime Hawk, July 3, 2024. Presented by Nancy A. Gass (WSBA 49685), O.W. Hollowell & Associates.

The order states:

- "no genuine issues of material fact"
- Bennett "has no lawful basis or authority as an individual to bring a criminal prosecutorial action"
- "the facts are undisputed that the Plaintiff does not have any legal parental rights to be interfered with, as these were previously terminated by the Snohomish County Superior Court in 2013"
- "Any other issues presented in Mr. Bennett's complaint have been adjudicated previously in court or are additional criminal charges the Plaintiff wishes to bring"

Errors in this order:

1. **Drafted by opposing counsel** — Gass prepared the order, Judge Hawk signed it verbatim
2. **Signed one day** after denying Bennett's Motion to Strike False Statements (7/2/2024)
3. **Discovery still outstanding** — Manning never responded to discovery; Motion to Compel pending since 5/6/2024
4. **Ignores fraud claims entirely** — Bennett alleged fraud in the inducement of relinquishment; order doesn't address fraud
5. **Misstates legal posture** — says rights "terminated in 2013" but adoption was never completed and cause dismissed in 2019
6. **Treats civil tort claims as criminal prosecution** — conflates Bennett's civil complaint with criminal authority

Order Denying Motion to Strike (July 2, 2024):

- "Plaintiff's Motion to Strike False Statements and Incorporation of New Evidence is DENIED"
 - "Plaintiff's Motion for Sanctions is DENIED"
 - No findings. No explanation. Same judge (Hawk). Same case.
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VIII. DEPLOYMENT STRATEGY

A. Petition for Review (WA Supreme Court) — Deadline ~Feb 25, 2026

Three sharp issues:

1. **Published precedent violation** — Division One violated its own holding in 84951-4-I regarding indigency/transcript funding
2. **ER 201(d) mandatory language pattern** — Nine judicial notice requests ignored across multiple proceedings; "shall" means mandatory
3. **Collateral estoppel from moot DVPO** — Gass's contradictory filings (civil evidence "not relevant" to DVPO on 6/21, then DVPO adjudicated "all" civil issues on 6/28) expose the logical impossibility

B. Federal § 1983 Complaint (9th Circuit)

Both tables as exhibits. Claims:

- § 1983 Due Process violations (default judgment without hearing/counsel; summary judgment with discovery outstanding)
- § 1985(3) Conspiracy (Manning, Kelly, Hollowell — coordinated action to deprive parental rights)
- Kelly's admission + chat logs = direct evidence of agreement under FRE 801(d)(2)(E)

C. WSBA Complaint (Gass/Hollowell)

- **Gass:** Table 1 rows 13-14 (contradictory representations within 7 days) = RPC 3.3 (candor to tribunal); Table 1 row 8 (preparing internally contradictory sworn statement)
- **Hollowell:** Table 1 row 4 (submitting findings with mutually exclusive checked boxes — "abandoned" AND "threaten to remove")

D. CR 60(b) Motion to Vacate 2008 Judgment

- Table 1 rows 1-4 + Table 2 row 1
- Default judgment against incarcerated person based on findings disproven by petitioner's own sworn declaration filed 9 days earlier
- CR 60(b)(4) void judgment (no jurisdiction — due process violation)
- CR 60(b)(3) fraud upon the court (internally contradictory findings, manufactured "abandonment" narrative, chat logs showing coercion)

IX. AUTHENTICATION REQUIREMENTS

Evidence	Authentication Method
Kelly Facebook screenshots (2022)	Declaration from Jessica Bennett under penalty of perjury; OCR extraction; FRE 801(d) (2)(E) co-conspirator statement
MSN Chat logs (2008)	John Manning's email header (adubbsworld@hotmail.com); forwarded to Melvina; self-authenticating as party admission
Communication Agreement	Court file, 13-5-00050-3 — judicial notice under ER 201
2008 Findings/Declaration	Court file, 08-3-03956-4 — judicial notice under ER 201
2013 Relinquishment	Court file, 13-5-00050-3 — judicial notice under ER 201
Manning's 2023 Response	Court file, 23-2-11352-7 — judicial notice under ER 201
Manning/T.B. DVPO Declarations	Court file, 22-2-09380-3 — judicial notice under ER 201
Video (June 12, 2011)	Declaration identifying video; Manning filmed it (party admission)
Published opinion 84951-4-I	Published appellate decision — self-authenticating

X. KEY QUOTES INDEX

For quick reference — exact quotes from source documents:

Quote	Speaker	Source	Significance
"he is never to see Tim"	Kelly Jovanovich	FB 11/25/2022	Confirms permanent exclusion arrangement
"Mel and John are keeping Tim from me and I still have rights"	Kelly Jovanovich	FB 11/25/2022	Manning excluding even cooperating conspirator
"calling his son on the telephone a couple times per week"	Manning Declaration	11/26/2008 ¶4	Disproves "abandonment" found 9 days later
"Both parents threaten to remove child from State of Washington"	Findings of Fact	12/5/2008 p.5	Contradicts "abandonment" in same document
"never made any attempt to contact"	Manning Response	9/19/2023 p.2	Contradicted by "one or two letters" on p.6 of same filing
"one or two letters during the roughly 4 years he was in prison"	Manning Response	9/19/2023 p.6	Admits contact while claiming none
"i told mom to drop it and i will sign him over till i get to wa"	Zack (MSN chat)	6/2/2008	Shows duress — sign or face prison
"the plan is finalized"	Kelly (MSN chat)	6/2/2008	Establishes pre-existing conspiracy
"we did this to our self we need to clean up our acts"	Kelly (MSN chat)	6/2/2008	Kelly acknowledges joint responsibility
"mom has to realize this is about tim and my life, she can have her way without fucking me over"	Zack (MSN chat)	6/2/2008	Shows Manning had leverage through probation/prison threat
"not legally enforceable unless... set forth in a written court order signed by a judge"	Communication Agreement	2013, §1.1	Agreement used to induce relinquishment was unenforceable by its own terms
"We reverse and remand"	Div. One per curiam	84951-4-I, 4/17/2023	Published precedent subsequently violated by same court